

STATE OF NEW YORK

756--B

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. SOLAGES, DURSO, GRIFFIN, SCHIAVONI, STERN, BURROUGHS, KASSAY, O'PHARROW, RAMOS, GANDOLFO, DeSTEFANO, FITZPATRICK, MIKULIN, K. BROWN, RA, KIM, COLTON, GIGLIO, SANTABARBARA, BRABENEC, SMITH, SLATER -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to certain construction projects

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 3602-g
2 to read as follows:

3 § 3602-g. Apportionment of public moneys to school district
4 construction projects in Long Island. 1. For purposes of this section,
5 "construction project" shall mean the construction, reconstruction,
6 rehabilitation or improvement of any school building where a district
7 receives any apportionment for debt service or building aid under subdi-
8 vision six of section thirty-six hundred two of this part and the school
9 building is sited within the Long Island region as defined in subpara-
10 graph two of paragraph a of subdivision four of section thirty-six
11 hundred two of this part and the total estimated cost of the contract or
12 contracts for the project is one million dollars or more.

13 2. Each contract involving the awarding of a construction project
14 shall only be undertaken pursuant to a project labor agreement in
15 accordance with section two hundred twenty-two of the labor law, for all
16 contractors and subcontractors on the project, consistent with paragraph
17 (a) of subdivision two of section two hundred twenty-two of the labor
18 law. Any contract, subcontract, lease, grant, bond, covenant or other

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 agreement for a construction project undertaken pursuant to this subdivi-
2 vision shall not be subject to the requirements of separate specifica-
3 tions of section one hundred one of the general municipal law when the
4 project is performed under a project labor agreement pursuant to this
5 subdivision.

6 § 2. This act shall take effect January 1, 2026, and shall apply to
7 all construction projects bid on or after such effective date.